

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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NADIYAH NUNNALLY,

Plaintiff,

-against-

THE CITY OF NEW YORK,
NYPD OFFICER WALESKA CRUZ and
NYPD SGT. KEITH ORVIETO,

Defendants.

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To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within 20 days after service of this summons (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
December 10, 2019

SIVIN & MILLER, LLP

By



Edward Sivin
Attorneys for Plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X
NADIYAH NUNNALLY,

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK,
NYPD OFFICER WALESKA CRUZ and
NYPD SGT. KEITH ORVIETO,

Defendants.

----- X

Plaintiff, by her attorneys SIVIN & MILLER, LLP, as and for her complaint herein,
alleges as follows, upon information and belief:

THE DEFENDANTS

1. That at all times herein mentioned, defendant The City of New York (hereinafter “the City”) was and is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.

2. That prior to the institution of this action and within ninety (90) days from the dates when the causes of action accrued herein, notices of claim and intention to sue were duly served upon and filed with the defendants on behalf of plaintiff; that this action was not commenced until the expiration of thirty (30) days after such notices of claim and intention to sue were presented and the defendants have neglected and/or refused to make adjustment or payment thereon, and this action is being commenced within one year and ninety days after the causes of action accrued herein.

3. That at all times herein mentioned, the City operated, controlled, managed, and maintained the New York Police Department (hereinafter the “NYPD”).

4. That at all times herein mentioned, defendant NYPD Officer Waleska Cruz (hereinafter “Cruz”) was and is a police officer employed by the NYPD.

5. That at all times herein mentioned, Cruz was acting within the course and scope of her employment with the NYPD.

6. That at all times herein mentioned, Cruz was acting under color of state law.

7. That at all times herein mentioned, defendant NYPD Sgt. Keith Orvieto (hereinafter "Orvieto") was and is a police sergeant employed by the NYPD.

8. That at all times herein mentioned, Orvieto was acting within the course and scope of his employment with the NYPD.

9. That at all times herein mentioned, Orvieto was acting under color of state law.

THE FACTS

10. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

11. That on or about September 23, 2018, outside of premises at 700 Exterior Street, Bronx, NY, members of the NYPD, including but not limited to Cruz and Orvieto, without a warrant and without probable cause to believe that plaintiff committed or was about to commit any crime, seized plaintiff's motor vehicle and caused plaintiff to be handcuffed, arrested, and physically detained.

12. That after handcuffing and arresting plaintiff, defendants imprisoned plaintiff and/or caused plaintiff to be imprisoned for a period of several hours at various locations, including a police precinct.

13. That after being imprisoned for several hours, plaintiff was released from custody without any criminal charges being filed against her.

14. That on or about September 23, 2018, defendants herein, without probable cause, also initiated and/or caused to be initiated with the NY State Office of Children and Family

Services charges of child abuse and maltreatment against plaintiff in connection with plaintiff's custody and care of her minor children.

15. That in support of the charges of child abuse and maltreatment, defendants made statements and accusations against plaintiff that were false and that defendants knew to be false.

16. That the aforementioned false statements made by defendants constituted material evidence in the prosecution of the child abuse and maltreatment charges against plaintiff, and evidence that would likely influence authorities as to the guilt or innocence of plaintiff with respect to those charges.

17. That as a consequence of these false charges of child abuse and maltreatment, plaintiff was subjected to an invasion of her privacy and a deprivation of liberty.

18. That on or about December 5, 2018, the charges of child abuse and maltreatment against plaintiff were deemed "unfounded" and were dismissed, and the proceeding against plaintiff was terminated favorably to plaintiff.

19. That at all times herein mentioned, Cruz and Orvieto observed the illegal and unconstitutional conduct of their fellow officers, had reasonable opportunities to intervene to prevent and/or stop that conduct, and intentionally failed to do so.

20. That the actions of defendants herein were intentional and malicious in nature, and were otherwise without justification or privilege.

21. That as a result of the actions of defendants, plaintiff sustained physical and emotional injuries and distress, endured and will continue to endure pain and suffering and loss of enjoyment of life, suffered a loss of liberty, and incurred and will continue to incur economic loss, and sustained other damages.

22. That all of the causes of action herein fall within one or more of the exceptions of CPLR Section 1602 with respect to joint and several liability.

FIRST CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Assault and Battery)

23. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

24. That the aforementioned actions of defendants constitute an assault and battery, for which Cruz and Orvieto and the other officers are liable under New York State law and for which the City is vicariously liable under the doctrine of respondeat superior.

SECOND CAUSE OF ACTION AGAINST ALL DEFENDANTS
(False Arrest/Imprisonment)

25. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

26. That the aforementioned actions of defendants constitute a false arrest and false imprisonment of plaintiff, for which Cruz and Orvieto and the other officers are liable under New York State law and for which the City is vicariously liable under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Malicious Prosecution)

27. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

28. That the aforementioned actions of defendants constitute a malicious prosecution of plaintiff, for which Cruz and Orvieto and the other officers are liable under New

York State law and for which the City is vicariously liable under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION AGAINST CRUZ and ORVIETO
(42 USC § 1983: Fourth and Fourteenth Amendment Violations)

29. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

30. That the aforementioned actions of Cruz and Orvieto, including the assault and battery, false arrest and imprisonment, and malicious prosecution, and their failure to intervene to stop or prevent the conduct of fellow officers, constitute illegal seizures of plaintiff and deprivation of liberty of plaintiff, in violation of rights guaranteed to plaintiff under the Fourth Amendment and Fourteenth Amendment to the U.S. Constitution, and entitle plaintiff to recover damages pursuant to 42 USC § 1983.

FIFTH CAUSE OF ACTION AGAINST CRUZ and ORVIETO
(42 USC § 1983 Claim Based on Denial of Right to Fair Trial)

31. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

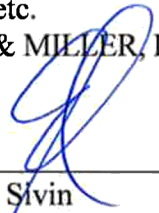
32. That the aforesaid actions by Cruz and Orvieto constitute a denial of plaintiff's right to a fair trial, in violation of plaintiff's rights under the Fifth, Sixth and Fourteenth Amendments to the United States Constitution, and entitle plaintiff to recover monetary damages under 42 U.S.C. § 1983.

WHEREFORE, plaintiff demands judgment against defendants, and each of them, on the foregoing causes of action for compensatory damages in an amount that exceeds the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and for punitive damages against defendants Cruz and Orvieto, and attorney's fees against Cruz and

Orvieto pursuant to 42 USC § 1988, and plaintiff also demands the costs and disbursements of this action.

Dated: New York, New York
December 10, 2019

Yours, etc.
SIVIN & MILLER, LLP

By 
Edward Sivin
Attorneys for plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

VERIFICATION

EDWARD SIVIN, an attorney duly admitted to practice law in the State of New York, hereby affirms the following, under penalty of perjury:

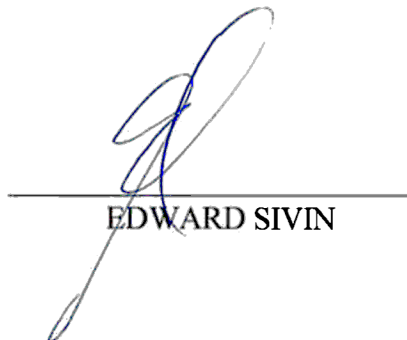
That I am the attorney for the plaintiff(s) in the within action.

That I have read the foregoing complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be upon information and belief; and as to those matters I believe it to be true.

That the reason this verification is made by your affirmant and not by the plaintiff(s) is that plaintiff(s) does not reside in the County where your affirmant maintains his office.

That the grounds for your affirmant's belief as to all matters not stated upon my knowledge are as follows: records, reports, facts and documents contained in plaintiff(s) file maintained by your affirmant's office.

Dated: New York, New York
December 10, 2019



EDWARD SIVIN

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Year 2019

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VERIFIED COMPLAINT

SIVIN & MILLER, LLP

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20 Vesey St., Suite 1400

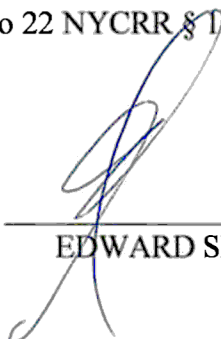
New York, NY 10007

(212) 349-0300

FAX (212) 406-9462

Certification Pursuant to 22 NYCRR §130-1.1a

Edward Sivin hereby certifies that, pursuant to 22 NYCRR §130-1.1a, the enclosed papers are not frivolous nor frivolously presented.



EDWARD SIVIN

Dated: New York, New York
December 10, 2019